



File No.: EXP202307715

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by the CANARY ISLANDS HEALTH SERVICE (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 18, 2023, and based on the following

FACTS

FIRST: On December 18, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202307715, in which it was agreed to uphold the claim for the exercise of rights made by A.A.A. (hereinafter the claimant) against the now appellant.

SECOND: The resolution now being appealed was duly notified to the appellant on January 2, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which, in summary, states the following:

The appellant begins by recounting the facts chronologically.

He points out that the resolution did not include the fact that he responded to the questions posed by the Agency. He reminds us that he requested that we revert to the stage prior to the admission for processing.

He continues by stating that the poor communication between the parties influenced the exercise of the right, and that the claimant only approached one hospital center, which is why only the documentation contained therein was provided to him.

Namely:

"...In the response to the information request dated October 24, 2023, it was stated that the claimant had submitted two requests for access to the medical history of her deceased father, which had been duly addressed by the Hospital Center where they were submitted. (...) The Canary Islands Health Service considers that there has been poor communication between the request of the interested party and the response provided, due to the current system for processing requests for access to medical histories.

In general terms, when a person wishes to obtain a complete copy of the medical history held in all systems of the Canary Islands Health Service, they must submit their request through registration via electronic headquarters (**URL.1). (...) We consider that, by submitting a request directly at the university hospital complex of **LOCALIDAD.1 Dr. B.B.B., it was understood that the person was requesting the complete copy of their medical history from the hospital, not the complete medical history from the SCS..."

Among the submitted documents, there is a letter sent by the appellant requesting information regarding the claim filed to facilitate access in the various centers. Aside from what was requested, it is not evidenced that the right has been attended to, as only the documentation provided by the Dr. Negrín clinic appears in the documentation.

Namely:

"...Subject: Request for information. A letter from the AEPD is sent regarding the claim filed by the daughter of D. C.C.C., DNI: **NIF.1, requesting the SCS to facilitate the right of access to the complete medical history of her father before January 4, 2024. This person has a medical history in Gran Canaria (...) University hospital complex of **LOCALIDAD Dr. B.B.B. (...) University hospital complex **COMPLEJO.1 (...) Referrals: 2014 Hospital **HOSPITAL.1 and in 2020 Clinic **CLÍNICA.1. Inform the OdS when the information has been sent to the interested party..."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic

Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

III

Conclusion

Regarding the statements made by the appellant, it should be noted that the respondent is always obliged to respond.

That after the admission for processing for not attending to the right, only allegations can be requested, which is what this Agency did, expecting that the right would be attended to throughout the procedure and resolved.

It is not contemplated in this case, nor were there reasons, to revert the claim to the previous phase, as requested by the appellant.

As of the date of resolution of this recourse and after analyzing the documentation included therein, we do not find the response that the respondent owes to the claimant to fully attend to the right of access or to deny it with justification. While it is true that the now appellant has provided the documentation included in a hospital center, it is also true that the claimant considered the response incomplete and the appellant has not provided anything to complete it. He only states that since he requested the medical history at that hospital center, it is justified by saying that they gave him what was there.

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When a request for rights is not received through the established channel, as the appellant claims regarding this case, once known, it must be directed and resolved accordingly.

Therefore, the appellant must analyze the requested and unaddressed items and provide them to consider the claim as addressed. Since, in one of the writings, there is mention of clinical documentation from other centers that has not been proven to have been provided.

Examining the appeal for reconsideration submitted by the interested party, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its dismissal.

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the CANARY ISLANDS HEALTH SERVICE against the Resolution of this Spanish Agency for Data Protection issued on December 18, 2023, in the file EXP202307715.

SECOND: TO NOTIFY this resolution to the CANARY ISLANDS HEALTH SERVICE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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